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'SKITTLES BAN' BILL RECEIVES APPROVAL - Food additives ban among a bevy of new laws in state

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Author: John Woolfolk jwoolfolk@bayareanewsgroup.com | Section: Front | 1058 Words
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Highlighting a flurry of signings and vetoes in recent days, Gov. Gavin Newsom headed into a final week to act on hundreds of bills by approving new environmental and fentanyl laws, prohibiting hidden fees, and making California the first state to ban food dyes and to hold social media firms accountable for child sex trafficking.

The governor also rejected a host of proposed laws, including one that would have made the state the first to ban caste discrimination, and others that would have decriminalized psychedelic drugs and evasion of transit fares. In total, he signed 324 bills and vetoed 144 over the weekend, and has scores left to consider by Saturday's deadline.

Among the notable new laws, California will be the first state to ban four food additives already prohibited in many other countries over possible health risks with his signature on

a bill critics had lampooned as a "Skittles ban" threatening to take away the popular colorful candy.

Newsom, in a statement on signing AB 418, said he was including a bag of Skittles from Europe where the additives already are banned as "demonstrable proof that the food industry is capable of maintaining product lines while complying with different public health laws, country to country."

The National Confectioners Association said the U.S. Food and Drug Administration considers the ingredients at issue safe and the bill would create a confusing and costly patchwork of state laws. The banned ingredients are Red Dye No. 3, Potassium Bromate, Brominated Vegetable Oil and Propyl Paraben.

Bill author Jesse Gabriel, an Encino Democrat, boasted support from fitness icon and former Republican Gov. Arnold Schwarzenegger. The approved bill removed titanium dioxide - added to brighten colors in foods like candies - from the ban, and delayed implementation until 2027 to give manufacturers time to adjust.

Newsom vetoed another bill that would have made California the first state to ban discrimination based upon caste, a classification in South Asian cultures.

Newsom said he didn't think SB 403 was needed. The bill by state Sen. Aisha Wahab, a Hayward Democrat, would have made California the first state to ban discrimination based on caste bias.

The bill had split California's large South Asian community. Supporters saw it as a necessary clarification that caste discrimination is illegal. But critics argued the state's antidiscrimination laws are sufficient and feared it would stigmatize those of South Asian descent.

"In California, we believe everyone deserves to be treated with dignity and respect, no matter who they are, where they come from, who they love, or where they live," Newsom said in a veto message. "Because discrimination based on caste is already prohibited under these existing categories, this bill is unnecessary."

Wahab had no comment on the veto.

Newsom signed more than a dozen bills dealing with environmental policy over the weekend, including a first-in-the-nation law requiring large California companies to report their greenhouse gas emissions, a transition to electric school buses, banning bee-killing pesticides and considering solar panels along highways.

Newsom also signed some bills aimed at dealing with the fentanyl drug abuse problem. AB 701 by Assemblyman Carlos Villapudua, a Stockton Democrat, increases penalties for possession of significant amounts of synthetic opioid fentanyl.

SB 234 by state Sen. Anthony Portantino, a Burbank Democrat, will require amusement parks, concert venues and stadiums to maintain two on-site, unexpired doses of Naloxone, commonly known by the brand name Narcan, which can quickly revive someone who is overdosing on opioids like fentanyl. An earlier provision that also would have required K-12 public schools to stock up on Naloxone was removed.

And AB 461 by Assemblyman James C. Ramos, a Highland Democrat, will require California community colleges and state universities to make fentanyl test strips available to students, which can warn them if black market drugs or other products are laced with the potent drug.

Among other notable bills Newsom signed:

• SB 274 - Expands on earlier legislation prohibiting schools from suspending or expelling elementary school pupils, and until July 2025, middle school students as well. SB 274 will prohibit suspensions of middle and high school students for willful defiance, described as "low-level behavior issues," until July 2029. The bill, which had no formal opposition, aims to avoid compounding problems for difficult students by keeping them in school.

• AB 1394 - The bipartisan bill makes California the first state to require social media platforms to give child sex abuse victims a way to demand removal of videos or images of their abuse, and to let them sue the platforms for knowingly contributing to child sex trafficking.

• SB 478 - Makes it illegal to advertise a good or service that doesn't include all mandatory charges other than the taxes or fees imposed by a government. Attorney General Rob Bonta said the new law banning junk fees will ensure that "the price Californians see will be the price they pay."

• AB 1136 - Creates a Mixed Martial Arts Retirement Benefit Fund for aging fighters, funded by a $1 surcharge on ticket sales.

Among other notable Newsom vetoes:

• AB 374 - Would have legalized Amsterdam-style "cannabis cafes" where, with local approval, dispensaries licensed to sell marijuana products could also sell food and host live concerts. Newsom's veto message said he feared it would "undermine California's long-standing smoke-free workplace protections."

• AB 819 - Would have reduced the penalty for a third or subsequent public transit fare evasion from a misdemeanor punishable by up to 90 days in jail to a fine of no more than $400. Newsom said in his veto message that he "cannot take an action to reduce penalties on fare evasion that could, in turn, contribute to an increase in crime on transit."

• SB 541 - Would have required public high schools to make free condoms available to students. Newsom said in his veto message that he was concerned about creating an "unfunded mandate to public schools that should be considered in the annual budget process."

• AB 1356 - Would have increased the notice an employer must provide before a mass layoff from 60 to 75 days and expand the law's coverage to include contract workers. Newsom said in his veto message that businesses may not be able to determine the impact on their contractors.

• SB 58 - Would have decriminalized possession of "magic" psilocybin mushrooms, mescaline and other psychedelic drugs. Newsom said in his veto message that it's premature.

Staff writers Paul Rogers and Scooty Nickerson contributed to this report.

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